Appendix L: Printer's affidavit

I, Bryan Harper, being duly sworn, depose and say:

1. That I prepared the attached petition proof.
2. That the size of the petition is 8.5 inches by 14 inches.
3. That the circulator compliance statement ("If the circulator of this petition does not comply . . .") is printed in 12-point type.
4. That the heading of the petition is presented in the following form and printed in capital letters in 14- point boldface type:

INITIATIVE PETITION
AMENDMENT TO THE CONSTITUTION
or
INITIATION OF LEGISLATION
or
REFERENDUM OF LEGISLATION
PROPOSED BY INITIATIVE PETITION

1. That the summary of the purpose of the proposal is printed in 12-point type and does not exceed 100 words in length.
2. That the words, "We, the undersigned qualified and registered electors . . ." are printed in 8-point type.
3. That the two warning statements and language contained therein are printed in 12-point boldface type.
4. That the words, "CIRCULATOR – Do not sign or date . . ." are printed in 12-point boldface type.
5. That the balance of the petition is printed in 8-point type.
6. That the font used on the petition is Arial.
7. That to the best of my knowledge and belief, the petition conforms to the petition form standards prescribed by Michigan Election Law.

JOHN P EVANS
Notary Public - State of Michigan
County of Genesee
My Commission Expires Sep 27, 2028
Acting in the County of _____

Bryan Harper
Printer's Signature

Michiganders for Money Out of Politics
Name of Sponsor of Proposal

Subscribed and sworn to (or affirmed) before me on this 12 day of Sept, 2025.

Signature of Notary Public

John P. Evans
Printed Name of Notary Public Notary Public,

State of Michigan, County of _____.
Acting in the County of _____. My commission expires _____.

The circulator of this petition is a (mark one): ❑ paid signature gatherer ❑ volunteer signature gatherer.
If the petition circulator does not comply with all of the requirements of the Michigan election law for petition circulators, any signature obtained by that petition circulator on that petition is invalid and will not be counted.

INITIATION OF LEGISLATION

Initiation of legislation to: prohibit regulated electric and gas utilities, contractors with over $250,000 annually in government contracts, and people and organizations with substantial connections to these utilities/contractors from making direct or indirect campaign contributions to those who run for or hold offices that impact them; expand campaign finance laws and restrictions that regulate spending on political communications, including laws that require disclosing donor information, to apply to communications clearly identifying candidates or ballot questions, even if they do not expressly advocate voting for/against them; expressly apply the law requiring disclosure of who paid for political communications to internet political communications.

For the full text of 1976 PA 388, entitled "Michigan campaign finance act," (MCL 169.201 to 169.282), as amended, see the reverse side of this petition.

We, the undersigned qualified and registered electors, residents in the county of _____ ,state of Michigan, respectively petition for initiation of legislation.

WARNING – A person who knowingly signs this petition more than once, signs a name other than his or her own, signs when not a qualified and registered elector, or sets opposite his or her signature on a petition, a date other than the actual date the signature was affixed, is violating the provisions of the Michigan election law.

SIGNATURE	PRINTED NAME	STREET ADDRESS OR RURAL ROUTE	CITY OR TOWNSHIP	ZIP CODE	DATE OF SIGNING		
					MO	DAY	YEAR
1.							
2.							
3.							
4.							
5.							
6							
7.							
8.							
9.							
10.							

CERTIFICATE OF CIRCULATOR

The undersigned circulator of the above petition asserts that he or she is 18 years of age or older and a United States citizen; that each signature on the petition was signed in his or her presence; that he or she has neither caused nor permitted a person to sign the petition more than once and has no knowledge of a person signing the petition more than once; and that, to his or her best knowledge and belief, each signature is the genuine signature of the person purporting to sign the petition, the person signing the petition was at the time of signing a registered elector of the city or township indicated preceding the signature, and the elector was qualified to sign the petition.

❑ If the circulator is not a resident of Michigan, the circulator shall make a cross or check mark in the box provided, otherwise each signature on this petition sheet is invalid and the signatures will not be counted by a filing official. By making a cross or check mark in the box provided, the undersigned circulator asserts that he or she is not a resident of Michigan and agrees to accept the jurisdiction of this state for the purpose of any legal proceeding or hearing that concerns a petition sheet executed by the circulator and agrees that legal process served on the Secretary of State or a designated agent of the Secretary of State has the same effect as if personally served on the circulator.

WARNING – A circulator knowingly making a false statement in the above certificate, a person not a circulator who signs as a circulator, or a person who signs a name other than his or her own as circulator is guilty of a misdemeanor.

CIRCULATOR – Do not sign or date certificate until after circulating petition.

_____ ____/____/____
(Signature of Circulator) (Date)

_____
(Printed Name of Circulator)

_____
(Complete Residence Address (Street and Number or Rural Route)) Do not enter a post office box

_____
(City or Township, State, Zip Code)

_____
(County of Registration, if Registered to Vote, of a Circulator who is not a Resident of Michigan)

130398

Paid for with regulated funds by Michiganders for Money Out of Politics Ballot Committee, 23133 Woodward Ave #196, Ferndale, MI 48220

INITIATION OF LEGISLATION

Initiation of legislation to: prohibit regulated electric and gas utilities, contractors with over $250,000 annually in government contracts, and people and organizations with substantial connections to these utilities/contractors from making direct or indirect campaign contributions to those who run for or hold offices that impact them; expand campaign finance laws and restrictions that regulate spending on political communications, including laws that require disclosing donor information, to apply to communications clearly identifying candidates or ballot questions, even if they do not expressly advocate voting for/against them; expressly apply the law requiring disclosure of who paid for political communications to internet political communications.

An initiation of legislation to amend 1976 PA 388, entitled "Michigan campaign finance act," (MCL 169.201 to 169.282) by amending sections 1, 3, 5, 6, 9, 44, 47, and 51, (MCL 169.201, 169.203, 169.205, 169.206, 169.209, 169.244, 169.247, and 169.251), as amended, and by adding sections 30a and 30b. The full text of the proposed initiated law follows (language to be added shown in capital letters, deletions struck out with a line):

The People of the State of Michigan enact:

Sec. 1. (1) This act shall be known and may be cited as the "Michigan campaign finance act". (2) Except as otherwise defined in this act, the words and phrases defined in sections 2 to 12 shall, for the purposes of this act, have the meanings ascribed to them in those sections. (3) IF ANY PORTION OR SUBSECTION OF THIS ACT IS FOUND VOID, INVALID, OR UNENFORCEABLE BY A COURT OF COMPETENT JURISDICTION, SUCH FINDING WILL NOT AFFECT THE VALIDITY OR ENFORCEABILITY OF THE REMAINING PORTIONS OF THIS ACT.

Sec. 3. (1) "Candidate" means an individual who meets 1 or more of the following criteria: (a) Files a fee, an affidavit of incumbency, or a nominating petition for an elective office. (b) Is nominated as a candidate for elective office by a political party caucus or convention and whose nomination is certified to the appropriate filing official. (c) Receives a contribution, makes an expenditure, or gives consent for another person to receive a contribution or make an expenditure with a view to bringing about the individual's nomination or election to an elective office, whether or not the specific elective office for which the individual will seek nomination or election is known at the time the contribution is received or the expenditure is made. (d) Is an officeholder who is the subject of a recall vote. (e) Holds an elective office, unless the officeholder is constitutionally or legally barred from seeking reelection or fails to file for reelection to that office by the applicable filing deadline. An individual described in this subdivision is considered to be a candidate for reelection to that same office for the purposes of this act only. For purposes of sections 61 to 71, "candidate" only means, in a primary election, a candidate for the office of governor and, in a general election, a candidate for the office of governor or lieutenant governor. However, the candidates for the office of governor and lieutenant governor of the same political party in a general election are considered as 1 candidate. (2) "Candidate committee" means the committee designated in a candidate's filed statement of organization as that individual's candidate committee. A candidate committee must be under the control and direction of the candidate named in the same statement of organization. Notwithstanding subsection (4), an individual shall form a candidate committee under section 21 if the individual becomes a candidate under subsection (1). (3) "CLEARLY IDENTIFY OR CLEARLY IDENTIFIABLE" MEANS IDENTIFYING A CANDIDATE BY NAME, PHOTOGRAPH, NICKNAME, DRAWING, IMAGE OR INFERENCE; IDENTIFYING A BALLOT QUESTION BY NAME, ACRONYM, POPULAR TITLE, OFFICIAL TITLE, NUMBER, OR SYMBOL ASSOCIATED WITH THE BALLOT QUESTION; OR MAKING AN UNAMBIGUOUS REFERENCE TO A CANDIDATE OR BALLOT QUESTION USING A PHRASE SUCH AS "THE GOVERNOR", "THE INCUMBENT," OR "YOUR REPRESENTATIVE" OR THROUGH AN UNAMBIGUOUS REFERENCE TO HIS OR HER STATUS AS A CANDIDATE SUCH AS "THE REPUBLICAN CANDIDATE FOR SECRETARY OF STATE". ~~(3)~~(4) "Closing date" means the date through which a campaign statement is required to be complete. ~~(4)~~(5) "Committee" means a person that receives contributions or makes expenditures for the purpose of influencing or attempting to influence the action of the voters for or against the nomination or election of a candidate, the qualification, passage, or defeat of a ballot question, or the qualification of a new political party, if contributions received total $500.00 or more in a calendar year or expenditures made total $500.00 or more in a calendar year. Except as restricted or prohibited by this act or other state or federal law, a committee may also make other lawful disbursements. An individual, other than a candidate, does not constitute a committee. A person, other than a committee registered under this act, making an expenditure to a ballot question committee or an independent expenditure committee, shall not, for that reason, be considered a committee or be required to file a report for the purposes of this act unless the person solicits or receives contributions for the purpose of making an expenditure to that ballot question committee or independent expenditure committee.

Sec. 5. (1) "Domestic dependent sovereign" means an Indian tribe that has been acknowledged, recognized, restored, or reaffirmed as an Indian tribe by the secretary of the interior pursuant to 25 USC 5101 to 5144, commonly referred to as the Indian reorganization act, or has otherwise been acknowledged by the United States government as an Indian tribe. (2) "Election" means a primary, general, special, or millage election held in this state or a convention or caucus of a political party held in this state to nominate a candidate. Election includes a recall vote. (3) "Election cycle" means 1 of the following: (a) For a general election, the period beginning the day following the last general election in which the office appeared on the ballot and ending on the day of the general election in which the office next appears on the ballot. (b) For a special election, the period beginning the day a special general election is called or the date the office becomes vacant, whichever is earlier, and ending on the day of the special general election. (4) "ELECTIONEERING COMMUNICATION" MEANS A PUBLIC COMMUNICATION BY MEANS OF ANY BROADCAST, CABLE, OR SATELLITE COMMUNICATION, NEWSPAPER, MAGAZINE, OUTDOOR ADVERTISING FACILITY, MASS MAILING, TELEPHONE CALLS (LIVE OR PRERECORDED MESSAGES) OF AN IDENTICAL OR SUBSTANTIALLY SIMILAR NATURE, INTERNET COMMUNICATION, OR ANY OTHER FORM OF GENERAL PUBLIC COMMUNICATION THAT: (A) REFERENCES A CLEARLY IDENTIFIABLE CANDIDATE, REGARDLESS OF WHETHER THE COMMUNICATION CONTAINS EXPRESS ADVOCACY, WITHIN 100 DAYS BEFORE A GENERAL ELECTION OR WITHIN 30 DAYS BEFORE A PRIMARY OR SPECIAL ELECTION WHERE THE CANDIDATE APPEARS ON THE BALLOT; AND (B) IS TARGETED TO THE RELEVANT ELECTORATE WHERE THE CANDIDATE APPEARS ON THE BALLOT. THE SECRETARY OF STATE SHALL PROMULGATE RULES DEFINING THE MEANING OF "TARGETED TO THE RELEVANT ELECTORATE" FOR PURPOSES OF THIS SECTION. ~~(4)~~(5) "Elective office" means a public office filled by an election. An individual who is appointed to fill a vacancy in a public office that is ordinarily elective holds an elective office. Elective office does not include the office of precinct delegate. Except for the purposes of sections 47, 54, and 55, elective office does not include a school board member in a school district that has a pupil membership of 2,400 or less enrolled on the most recent pupil membership count day. However, elective office includes a school board member in a school district that has a pupil membership of 2,400 or less, if a candidate committee of a candidate for the office of school board member in that school district receives an amount in excess of $1,000.00 or expends an amount in excess of $1,000.00. Elective office does not include a federal office except for the purposes of section 57.

Sec. 6. (1) "Expenditure" means a payment, donation, loan, or promise of payment of money or anything of ascertainable monetary value for goods, materials, services, or facilities in assistance of, or in opposition to, the nomination or election of a candidate, the qualification, passage, or defeat of a ballot question, or the qualification of a new political party. Expenditure includes, but is not limited to, any of the following: (a) A contribution or a transfer of anything of ascertainable monetary value for purposes of influencing the nomination or election of a candidate, the qualification, passage, or defeat of a ballot question, or the qualification of a new political party. (B) A PUBLIC COMMUNICATION THAT DOES ANY OF THE FOLLOWING: (I) EXPRESSLY ADVOCATES FOR OR AGAINST THE NOMINATION OR ELECTION OF A CANDIDATE OR THE QUALIFICATION, PASSAGE, OR DEFEAT OF A BALLOT QUESTION. (II) PROMOTES, SUPPORTS, ATTACKS, OR OPPOSES A CANDIDATE, REGARDLESS OF WHETHER THE COMMUNICATION EXPRESSLY ADVOCATES THE ELECTION OR DEFEAT OF A CANDIDATE. (III) PROMOTES, SUPPORTS, ATTACKS, OR OPPOSES THE QUALIFICATION, PASSAGE, OR DEFEAT OF A BALLOT QUESTION, REGARDLESS OF WHETHER THE COMMUNICATION EXPRESSLY ADVOCATES FOR OR AGAINST SUCH QUALIFICATION, PASSAGE, OR DEFEAT. ~~(b)~~(C) Except as provided in subsection (2)(f) or (g), an expenditure for voter registration or get-out-the-vote activities made by a person who sponsors or finances the activity or who is identified by name with the activity. ~~(c)~~(D) Except as provided in subsection (2)(f) or (g), an expenditure made for poll watchers, challengers, distribution of election day literature, canvassing of voters to get out the vote, or transporting voters to the polls. (2) Expenditure does not include any of the following: (a) An expenditure for communication by a person with the person's paid members or shareholders and those individuals who can be solicited for contributions to a separate segregated fund under section 55. (b) An expenditure for communication on a subject or issue if the communication does not ~~support or oppose~~ CLEARLY IDENTIFY a ballot question or candidate ~~by name or clear inference~~ AND IS NOT AN ELECTIONEERING COMMUNICATION. (c) An expenditure for the establishment or administration of, or solicitation, collection, or transfer of contributions to, a separate segregated fund, including through a payroll deduction plan, or for mailing or shipping of an item or prize purchased under section 55(8). (d) An expenditure by a broadcasting station, newspaper, magazine, or other periodical or publication for a news story, commentary, or editorial in support of or opposition to a candidate for

elective office or a ballot question in the regular course of publication or broadcasting. (e) An offer or tender of an expenditure if expressly and unconditionally rejected or returned. (f) An expenditure for nonpartisan voter registration or nonpartisan get-out-the-vote activities made by an organization that is exempt from federal income tax under section 501(c)(3) of the internal revenue code, 26 USC 501, or any successor statute. (g) An expenditure for nonpartisan voter registration or nonpartisan get-out-the-vote activities performed under chapter XXIII of the Michigan election law, 1954 PA 116, MCL 168.491 to 168.523a, by the secretary of state and other registration officials who are identified by name with the activity. (h) An expenditure by a state central committee of a political party or a person controlled by a state central committee of a political party for the construction, purchase, or renovation of 1 or more office facilities in Ingham County if the facility is not constructed, purchased, or renovated for the purpose of influencing the election of a candidate in a particular election. Items excluded from the definition of expenditure under this subdivision include expenditures approved in Federal Election Commission advisory opinions 1993-9, 2001-1, and 2001-12 as allowable expenditures under the federal election campaign act of 1971, 52 USC 30101 to 30146, and regulations promulgated under that act, regardless of whether those advisory opinions have been superseded. (i) Except only for the purposes of section 57, an expenditure to or for a federal candidate or a federal committee. ~~(j) Except only for the purposes of section 47, an expenditure for a communication if the communication does not in express terms advocate the election or defeat of a clearly identified candidate so as to restrict the application of this act to communications containing express words of advocacy of election or defeat, such as "vote for", "elect", "support", "cast your ballot for", "Smith for governor", "vote against", "defeat", or "reject".~~

Sec. 9. (1) "Incidental expense" means an expenditure that is an ordinary and necessary expense, paid or incurred in carrying out the business of an elective office. Incidental expense includes, but is not limited to, any of the following: (a) A disbursement necessary to assist, serve, or communicate with a constituent. (b) A disbursement for equipment, furnishings, or supplies for the office of the public official. (c) A disbursement for a district office if the district office is not used for campaign-related activity. (d) A disbursement for the public official or his or her staff, or both, to attend a conference, meeting, reception, or other similar event. (e) A disbursement to maintain a publicly owned residence or a temporary residence at the seat of government. (f) An unreimbursed disbursement for travel, lodging, meals, or other expenses incurred by the public official, a member of the public official's immediate family, or a member of the public official's staff in carrying out the business of the elective office. (g) A donation to a tax-exempt charitable organization, including, but not limited to, the purchase of tickets to charitable or civic events, as long as the candidate is not an officer or director of or does not receive compensation, either directly or indirectly, from that organization. (h) A disbursement to a ballot question committee. (i) A purchase of tickets for use by that public official and members of his or her immediate family and staff to a fund-raising event sponsored by a candidate committee, independent committee, political party committee, or a political committee that does not exceed $100.00 per committee in any calendar year. (j) A disbursement for an educational course or seminar that maintains or improves skills employed by the public official in carrying out the business of the elective office. (k) A purchase of advertisements in testimonials, program books, souvenir books, or other publications if the advertisement does not support or oppose the nomination or election of a candidate. (l) A disbursement for consultation, research, polling, and photographic services not related to a campaign. (m) A fee paid to a fraternal, veteran, or other service organization. (n) A payment of a tax liability incurred as a result of authorized transactions by the candidate committee of the public official. (o) A fee for accounting, professional, or administrative services for the candidate committee of the public official. (p) A debt or obligation incurred by the candidate committee of a public official for a disbursement authorized by subdivisions (a) to (o), if the debt or obligation was reported in the candidate committee report filed for the year in which the debt or obligation arose. (2) "Independent expenditure" means an expenditure by a person if the expenditure is not made in cooperation, consultation, or concert with, or at the request or suggestion of, a ballot question committee or a candidate, a candidate committee or its agents, or a political party committee or its agents, and if the expenditure is not a contribution to a committee. (3) "Independent expenditure committee" means a committee formed under section 24b for the purpose of making independent expenditures under this act. (4) "In-kind contribution or expenditure" means a contribution or expenditure other than money. (5) "INTERNET COMMUNICATION" MEANS ANY PUBLIC COMMUNICATION OVER THE INTERNET THAT IS PLACED OR PROMOTED FOR A FEE ON ANOTHER PERSON'S WEBSITE, DIGITAL DEVICE, APPLICATION, OR ADVERTISING PLATFORM. A PUBLIC COMMUNICATION IS PROMOTED FOR A FEE WHERE A PAYMENT IS MADE TO A WEBSITE, DIGITAL DEVICE, APPLICATION, OR ADVERTISING PLATFORM IN ORDER TO INCREASE THE CIRCULATION, PROMINENCE, OR AVAILABILITY OF THE COMMUNICATION ON THAT WEBSITE, DIGITAL DEVICE, APPLICATION, OR ADVERTISING PLATFORM. ~~(5)~~(6) "Loan" means a transfer of money, property, or anything of ascertainable monetary value in exchange for an obligation, conditional or not, to repay in whole or in part. ~~(6)~~(7) "Local ballot question" means a ballot question of a local unit of government to be voted upon in that local unit of government. ~~(7)~~(8) "Local elective office" means an elective office at the local unit of government level. Local elective office also includes judge of the court of appeals, judge of the circuit court, judge of the district court, judge of the probate court, and judge of a municipal court. ~~(8)~~(9) "Local unit of government" means a district, authority, county, city, village, township, board, school district, intermediate school district, or community college district.

SEC. 30A. (1) AN ELECTRIC UTILITY, GAS UTILITY, PRINCIPAL OF AN ELECTRIC UTILITY OR GAS UTILITY, OR ENTITY THAT IS AFFILIATED WITH AN ELECTRIC UTILITY OR GAS UTILITY SHALL NOT MAKE A CONTRIBUTION OR DONATION DIRECTLY OR INDIRECTLY TO ANY OF THE FOLLOWING: (A) THE GOVERNOR, ATTORNEY GENERAL, STATE SENATOR, STATE REPRESENTATIVE, OR A CANDIDATE FOR SUCH OFFICE. (B) A STATE OR LOCAL PARTY COMMITTEE. (C) A COMMITTEE, OTHER THAN AN INDEPENDENT EXPENDITURE COMMITTEE OR BALLOT QUESTION COMMITTEE, THAT MAKES CONTRIBUTIONS TO A CANDIDATE FOR OFFICE UNDER PARAGRAPH (A). (D) A MEMBER OF THE MICHIGAN PUBLIC SERVICE COMMISSION. (E) AN ENTITY THAT IS AFFILIATED WITH THE GOVERNOR, ATTORNEY GENERAL, STATE SENATOR, STATE REPRESENTATIVE, A CANDIDATE FOR SUCH OFFICES, OR MEMBER OF THE MICHIGAN PUBLIC SERVICE COMMISSION AND DOES AT LEAST ONE OF THE FOLLOWING: (I) SPENDS MORE THAN $500 IN THE AGGREGATE IN AN ELECTION CYCLE TO MAKE CONTRIBUTIONS TO THE PERSON AFFILIATED WITH THE ENTITY, MAKE EXPENDITURES IN SUPPORT OF THE PERSON AFFILIATED WITH THE ENTITY OR OPPOSING THE PERSON'S OPPONENT, OR MAKE ELECTIONEERING COMMUNICATIONS REFERENCING THE PERSON AFFILIATED WITH THE ENTITY OR THE PERSON'S OPPONENT. (II) PAYS FOR OR REIMBURSES EXPENSES, SUCH AS TRAVEL, MEALS, OR CONFERENCE FEES, OF THE PERSON AFFILIATED WITH THE ENTITY. (2) AN ENTITY IS AFFILIATED WITH AN ELECTRIC UTILITY OR GAS UTILITY IF THE ENTITY IS DIRECTLY OR INDIRECTLY ESTABLISHED, FINANCED, MAINTAINED, OR CONTROLLED BY THE ELECTRIC UTILITY, GAS UTILITY, OR PRINCIPAL OF AN ELECTRIC UTILITY OR GAS UTILITY. (3) AN ENTITY IS AFFILIATED UNDER SUBSECTION (1)(E) OF THIS SECTION IF THE GOVERNOR, ATTORNEY GENERAL, STATE SENATOR, STATE REPRESENTATIVE, A CANDIDATE FOR SUCH OFFICE, MEMBER OF THE MICHIGAN PUBLIC SERVICE COMMISSION, OR THE AGENTS, IMMEDIATE FAMILY, OR STAFF MEMBERS OF SUCH PERSONS DOES AT LEAST ONE OF THE FOLLOWING: (A) DIRECTLY OR INDIRECTLY ESTABLISHED, FINANCES, MAINTAINS, OR CONTROLS THE ENTITY. (B) HAS SOLICITED FUNDS FOR THE ENTITY WITHIN THE PRIOR TWO YEARS, UNLESS THE ENTITY IS AN ORGANIZATION EXEMPT FROM FEDERAL INCOME TAX UNDER SECTION 501(C)(3) OF THE INTERNAL REVENUE CODE, 26 USC 501, OR ANY SUCCESSOR STATUTE. (C) SERVES IN AN EXECUTIVE OR MANAGERIAL CAPACITY FOR THE ENTITY. THIS PARAGRAPH DOES NOT APPLY IF THE PERSON IS A COVERED CANDIDATE'S OR OFFICIAL'S AGENT, IMMEDIATE FAMILY, OR STAFF MEMBER WHO DOES NOT PARTICIPATE IN AND DOES NOT HAVE ACTUAL OR IMPLICIT AUTHORITY TO AFFECT THE ENTITY'S DECISIONS CONCERNING SPENDING DESCRIBED UNDER SUBSECTION (1)(E)(I) OR (II). (4) AN ELECTRIC UTILITY OR GAS UTILITY THAT VIOLATES THIS SECTION IS SUBJECT TO A CIVIL FINE OF NOT MORE THAN 10 TIMES THE AMOUNT OF THE CONTRIBUTION OR DONATION. THE SECRETARY OF STATE SHALL INVESTIGATE ALLEGED VIOLATIONS OF THIS SUBSECTION CONSISTENT WITH THE PROCESS IN THE ACT FOR VIOLATIONS. IF THE SECRETARY OF STATE DETERMINES THAT THERE MAY BE REASON TO BELIEVE THAT A VIOLATION OF THIS SUBSECTION OCCURRED, AND IF THE OFFENDING ELECTRIC UTILITY OR GAS UTILITY REFUSES TO PAY ITS CIVIL FINE, THEN THE ATTORNEY GENERAL MAY BRING AN ACTION TO COLLECT THE FINE. (5) FOR PURPOSES OF THIS SECTION: (A) "ELECTRIC UTILITY" AND "GAS UTILITY" MEAN SUCH UTILITIES REGULATED BY THE MICHIGAN PUBLIC SERVICE COMMISSION. (B) "MAJORITY OWNER" MEANS A PERSON WHO HOLDS AN OWNERSHIP INTEREST OF MORE THAN 50% OF AN ENTITY. (C) "MEMBER OF THE MICHIGAN PUBLIC SERVICE COMMISSION" INCLUDES ANY PERSON WHO IS A MEMBER OF, OR IS NOMINATED TO SERVE AS A MEMBER OF, THE MICHIGAN PUBLIC SERVICE COMMISSION. (D) "PRINCIPAL OF AN ELECTRIC UTILITY OR GAS UTILITY" INCLUDES: (I) AN INDIVIDUAL WHO IS A MEMBER OF THE BOARD OF DIRECTORS, A MAJORITY OWNER, OR SUBSTANTIAL OWNER OF THE ELECTRIC UTILITY OR GAS UTILITY. (II) AN INDIVIDUAL WHO IS EMPLOYED BY THE ELECTRIC UTILITY OR GAS UTILITY AS A PRESIDENT, CHIEF EXECUTIVE OFFICER, TREASURER, OR OFFICER WHO HOLDS SIMILAR RESPONSIBILITIES WITH RESPECT TO THE ELECTRIC UTILITY OR GAS UTILITY. (III) AN AGENT OF THE ELECTRIC UTILITY, GAS UTILITY, OR PRINCIPAL OF THE ELECTRIC UTILITY OR GAS UTILITY, INCLUDING THEIR LOBBYIST OR LOBBYIST AGENT, AS DEFINED IN SECTION 5 OF THE LOBBY ACT, 1978 ACT 472, MCL 4.415. (IV) IMMEDIATE FAMILY OF ANY PERSON IN PARAGRAPHS (I) OR (II). (E) "STAFF MEMBER" MEANS AN INDIVIDUAL WHO, DURING THE PRIOR TWO YEARS, HAS BEEN: (I) EMPLOYED OR SERVED IN AN EXECUTIVE OR MANAGERIAL CAPACITY BY A PUBLIC OFFICIAL OR CANDIDATE LISTED UNDER SUBSECTION (1) OF THIS SECTION OR BY THE CANDIDATE COMMITTEE OF THE PUBLIC OFFICIAL OR CANDIDATE. (II) RETAINED BY A PUBLIC OFFICIAL OR CANDIDATE LISTED UNDER SUBSECTION (1) OF THIS SECTION OR BY THE CANDIDATE COMMITTEE OF THE PUBLIC OFFICIAL OR CANDIDATE TO PROVIDE PROFESSIONAL SERVICES, OTHER

THAN ACCOUNTING OR LEGAL SERVICES. (F) "SUBSTANTIAL OWNER" MEANS A PERSON WHO HOLDS AN OWNERSHIP INTEREST OF 5% OR MORE OF AN ENTITY.

SEC. 30B. (1) A STATE GOVERNMENT CONTRACTOR, PRINCIPAL OF A STATE GOVERNMENT CONTRACTOR, OR ENTITY THAT IS AFFILIATED WITH A STATE GOVERNMENT CONTRACTOR SHALL NOT MAKE A CONTRIBUTION OR DONATION DIRECTLY OR INDIRECTLY TO ANY OF THE FOLLOWING: (A) A CANDIDATE FOR STATE ELECTIVE OFFICE. (B) A COMMITTEE, OTHER THAN AN INDEPENDENT EXPENDITURE COMMITTEE OR BALLOT QUESTION COMMITTEE, THAT MAKES CONTRIBUTIONS TO ONE OR MORE CANDIDATES FOR STATE ELECTIVE OFFICE. (C) AN ENTITY THAT IS AFFILIATED WITH A CANDIDATE FOR STATE ELECTIVE OFFICE AND DOES AT LEAST ONE OF THE FOLLOWING: (I) SPENDS MORE THAN $500 IN THE AGGREGATE IN AN ELECTION CYCLE TO MAKE CONTRIBUTIONS TO THE CANDIDATE AFFILIATED WITH THE ENTITY, MAKE EXPENDITURES IN SUPPORT OF THE CANDIDATE AFFILIATED WITH THE ENTITY OR OPPOSING THE CANDIDATE'S OPPONENT, OR MAKE ELECTIONEERING COMMUNICATIONS REFERENCING THE CANDIDATE AFFILIATED WITH THE ENTITY OR THE CANDIDATE'S OPPONENT. (II) PAYS FOR OR REIMBURSES EXPENSES, SUCH AS TRAVEL, MEALS, OR CONFERENCE FEES, OF THE CANDIDATE. (2) A LOCAL GOVERNMENT CONTRACTOR, PRINCIPAL OF A LOCAL GOVERNMENT CONTRACTOR, OR ENTITY THAT IS AFFILIATED WITH A LOCAL GOVERNMENT CONTRACTOR SHALL NOT MAKE A CONTRIBUTION OR DONATION DIRECTLY OR INDIRECTLY TO ANY OF THE FOLLOWING: (A) A CANDIDATE FOR ELECTIVE OFFICE IN THE CONTRACTING JURISDICTION. (B) A COMMITTEE, OTHER THAN AN INDEPENDENT EXPENDITURE COMMITTEE OR BALLOT QUESTION COMMITTEE, THAT MAKES CONTRIBUTIONS TO ONE OR MORE CANDIDATES FOR ELECTIVE OFFICE IN THE CONTRACTING JURISDICTION. (C) AN ENTITY THAT IS AFFILIATED WITH A CANDIDATE FOR ELECTIVE OFFICE IN THE CONTRACTING JURISDICTION AND DOES AT LEAST ONE OF THE FOLLOWING: (I) SPENDS MORE THAN $500 IN THE AGGREGATE IN AN ELECTION CYCLE TO MAKE CONTRIBUTIONS TO THE CANDIDATE AFFILIATED WITH THE ENTITY, MAKE EXPENDITURES IN SUPPORT OF THE CANDIDATE AFFILIATED WITH THE ENTITY OR OPPOSING THE CANDIDATE'S OPPONENT, OR MAKE ELECTIONEERING COMMUNICATIONS REFERENCING THE CANDIDATE AFFILIATED WITH THE ENTITY OR THE CANDIDATE'S OPPONENT. (II) PAYS FOR OR REIMBURSES EXPENSES, SUCH AS TRAVEL, MEALS, OR CONFERENCE FEES, OF THE CANDIDATE. (3) THE PROHIBITIONS UNDER SUBSECTIONS (1) AND (2) ARE NOT ENFORCEABLE UNTIL 18 MONTHS AFTER THE EFFECTIVE DATE OF THE AMENDATORY ACT THAT ADDED THIS SECTION. (4) SUBJECT TO SUBSECTION (3), THE PROHIBITION UNDER SUBSECTION (1) OR (2) APPLIES DURING THE PERIOD BEGINNING WHEN NEGOTIATIONS FOR THE RELEVANT CONTRACT COMMENCE OR THE REQUEST FOR PROPOSALS OR REQUEST FOR QUALIFICATIONS IS RELEASED, WHICHEVER IS EARLIER. THE PROHIBITION UNDER SUBSECTION (1) OR (2) ENDS 18 MONTHS AFTER THE TERMINATION OF THE RELEVANT CONTRACT. (5) AN ENTITY IS AFFILIATED WITH A GOVERNMENT CONTRACTOR IF THE ENTITY IS DIRECTLY OR INDIRECTLY ESTABLISHED, FINANCED, MAINTAINED, OR CONTROLLED BY THE GOVERNMENT CONTRACTOR OR A PRINCIPAL OF THE GOVERNMENT CONTRACTOR. (6) AN ENTITY IS AFFILIATED UNDER SUBSECTION (1)(C) OR (2)(C) OF THIS SECTION IF THE CANDIDATE, OR THE AGENTS, IMMEDIATE FAMILY, OR STAFF MEMBERS OF SUCH PERSONS DOES AT LEAST ONE OF THE FOLLOWING: (A) DIRECTLY OR INDIRECTLY ESTABLISHED, FINANCES, MAINTAINS, OR CONTROLS THE ENTITY. (B) HAS SOLICITED FUNDS FOR THE ENTITY WITHIN THE PRIOR TWO YEARS, UNLESS THE ENTITY IS AN ORGANIZATION EXEMPT FROM FEDERAL INCOME TAX UNDER SECTION 501(C)(3) OF THE INTERNAL REVENUE CODE, 26 USC 501, OR ANY SUCCESSOR STATUTE. (C) SERVES IN AN EXECUTIVE OR MANAGERIAL CAPACITY FOR THE ENTITY. THIS PARAGRAPH DOES NOT APPLY IF THE PERSON IS A COVERED CANDIDATE'S AGENT, IMMEDIATE FAMILY, OR STAFF MEMBER WHO DOES NOT PARTICIPATE IN AND DOES NOT HAVE ACTUAL OR IMPLICIT AUTHORITY TO AFFECT THE ENTITY'S DECISIONS CONCERNING SPENDING DESCRIBED UNDER SUBSECTION (1)(C)(I) OR (II) OR SUBSECTION (2)(C)(I) OR (II). (7) IF A GOVERNMENT CONTRACTOR, PRINCIPAL OF A GOVERNMENT CONTRACTOR, OR ENTITY THAT IS AFFILIATED WITH A GOVERNMENT CONTRACTOR KNOWINGLY AND WILLINGLY MAKES A CONTRIBUTION OR DONATION PROHIBITED UNDER SUBSECTION (1) OR (2) OF THIS SECTION, THE CONTRACTING STATE OR LOCAL AGENCY MAY CANCEL THE EXISTING CONTRACT WITH SUCH GOVERNMENT CONTRACTOR AND NO STATE OR LOCAL AGENCY MAY AWARD THE GOVERNMENT CONTRACTOR A CONTRACT FOR 12 MONTHS AFTER THE ELECTION FOR WHICH THE CONTRIBUTION OR DONATION WAS MADE. (8) A PERSON DOES NOT VIOLATE THE PROHIBITIONS UNDER SUBSECTIONS (1) OR (2) IF THE PROHIBITED CONTRIBUTION OR DONATION IS RETURNED TO THE CONTRIBUTOR OR DONOR NO LATER THAN 30 DAYS FROM THE DATE THE RECIPIENT KNOWS OR SHOULD HAVE KNOWN THE CONTRIBUTION OR DONATION WAS MADE BY A SOURCE PROHIBITED UNDER SUBSECTIONS (1) OR (2). IN DETERMINING ANY PENALTIES FOR VIOLATIONS OF SUBSECTIONS (1) OR (2), THE SECRETARY OF STATE MAY CONSIDER MITIGATING AND AGGRAVATING FACTORS, INCLUDING WHETHER THE PERSON MAKING THE CONTRIBUTION OR DONATION REQUESTED THAT THE UNLAWFUL CONTRIBUTION OR DONATION BE RETURNED WITHIN 30 DAYS OF BEING MADE. (9) FOR PURPOSES OF THIS SECTION: (A) "CONTRACT" MEANS AN AGREEMENT OF CONTRACT, LET THROUGH A PROCUREMENT PROCESS OR OTHERWISE, FOR THE RENDITION OF SERVICES; THE FURNISHING OF ANY GOODS, MATERIAL, SUPPLIES, EQUIPMENT, OR ANY ITEMS OF ANY KIND; THE CONSTRUCTION, ALTERATION, OR REPAIR OF ANY PUBLIC BUILDING OR PUBLIC WORK; OR THE ACQUISITION, SALE, OR LEASE OF ANY LAND OR BUILDING. CONTRACT DOES NOT MEAN ANY OF THE FOLLOWING: (I) LOANS OR LOAN GUARANTEES. (II) SUBSIDIES OR GRANTS ALLOCATED THROUGH THE APPROPRIATIONS PROCESS. (III) COLLECTIVE BARGAINING AGREEMENTS. (IV) AGREEMENTS BETWEEN POLITICAL SUBDIVISIONS OF THIS STATE SUCH AS COUNTIES OR MUNICIPALITIES THAT HAVE AGREEMENTS WITH THE STATE OR ONE ANOTHER. (B) "CONTRACTING JURISDICTION" MEANS A LOCAL UNIT OF GOVERNMENT THAT HAS A CONTRACT WITH A LOCAL GOVERNMENT CONTRACTOR. (C) "GOVERNMENT CONTRACTOR" MEANS A STATE GOVERNMENT CONTRACTOR OR A LOCAL GOVERNMENT CONTRACTOR. (D) "LOCAL GOVERNMENT CONTRACTOR" MEANS ANY PERSON WHO HAS ENTERED INTO OR IS SEEKING TO ENTER INTO ONE OR MORE CONTRACTS WITH A LOCAL UNIT OF GOVERNMENT THAT EXCEED $250,000 IN THE AGGREGATE IN A CALENDAR YEAR. "LOCAL GOVERNMENT CONTRACTOR" INCLUDES ANY SUBCONTRACTOR WHO HAS BEEN HIRED TO PERFORM ANY PART OF AN ORIGINAL LOCAL UNIT OF GOVERNMENT CONTRACT AND WHOSE AGGREGATE CONTRACTS OR SUBCONTRACTING AGREEMENTS EXCEED $250,000 IN THE AGGREGATE IN A CALENDAR YEAR. (E) "MAJORITY OWNER" MEANS A PERSON WHO HOLDS AN OWNERSHIP INTEREST OF MORE THAN 50% OF AN ENTITY. (F) "PRINCIPAL OF A GOVERNMENT CONTRACTOR" INCLUDES: (I) AN INDIVIDUAL WHO IS A MEMBER OF THE BOARD OF DIRECTORS, A MAJORITY OWNER, OR SUBSTANTIAL OWNER OF THE GOVERNMENT CONTRACTOR. (II) AN INDIVIDUAL WHO IS EMPLOYED BY THE GOVERNMENT CONTRACTOR AS A PRESIDENT, CHIEF EXECUTIVE OFFICER, TREASURER, OR OFFICER WHO HOLDS SIMILAR RESPONSIBILITIES WITH RESPECT TO THE GOVERNMENT CONTRACTOR. (III) AN AGENT OF THE GOVERNMENT CONTRACTOR, INCLUDING THE CONTRACTOR'S LOBBYIST AGENT, AS DEFINED IN SECTION 15 OF THE LOBBY ACT, 1978 ACT 472, MCL 4.415. (IV) IMMEDIATE FAMILY OF ANY PERSON IN PARAGRAPHS (I) OR (II). (G) "STAFF MEMBER" MEANS AN INDIVIDUAL WHO, DURING THE PRIOR TWO YEARS, HAS BEEN: (I) EMPLOYED OR SERVED IN AN EXECUTIVE OR MANAGERIAL CAPACITY FOR THE CANDIDATE. (II) RETAINED BY A PUBLIC OFFICIAL OR CANDIDATE TO PROVIDE PROFESSIONAL SERVICES, OTHER THAN ACCOUNTING OR LEGAL SERVICES. (H) "STATE GOVERNMENT" MEANS AN OFFICE, DEPARTMENT, BOARD, COUNCIL, COMMISSION, INSTITUTION, OR OTHER AGENCY IN THE EXECUTIVE OR LEGISLATIVE BRANCH OF STATE GOVERNMENT. (I) "STATE GOVERNMENT CONTRACTOR" MEANS ANY PERSON WHO HAS ENTERED INTO OR IS SEEKING TO ENTER INTO ONE OR MORE CONTRACTS WITH STATE GOVERNMENT THAT EXCEED $250,000 IN THE AGGREGATE IN A CALENDAR YEAR. "STATE GOVERNMENT CONTRACTOR" INCLUDES ANY SUBCONTRACTOR WHO HAS BEEN HIRED TO PERFORM ANY PART OF AN ORIGINAL STATE GOVERNMENT CONTRACT AND WHOSE AGGREGATE CONTRACTS OR SUBCONTRACTING AGREEMENTS EXCEED $250,000 IN THE AGGREGATE IN A CALENDAR YEAR. (J) "SUBSTANTIAL OWNER" MEANS A PERSON WHO HOLDS AN OWNERSHIP INTEREST OF 5% OR MORE OF AN ENTITY.

Sec. 44. (1) A person shall not make a contribution to another person with the agreement or arrangement that the person receiving the contribution will then transfer that contribution to a particular ~~candidate~~ committee. (2) Except as otherwise provided in this section and sections 21a, 44a, 45, and 71, a candidate committee shall not make an expenditure or other disbursement except to further the nomination or election of the candidate for which it is formed. A candidate committee shall not make a contribution to or an independent expenditure on behalf of another candidate committee. This subsection does not prohibit the purchase of tickets to another candidate committee's fund-raising event that does not exceed $100.00 per candidate committee in any calendar year. (3) An individual, other than a committee treasurer or the individual designated as responsible for the record keeping, report preparation, or report filing for a committee, who obtains possession of a committee's contribution for the purpose of delivering the contribution to another committee shall deliver the contribution to that committee, that committee's treasurer, or that committee's agent, or return the contribution to the payor, not later than 10 business days after obtaining possession of the contribution. (4) Two or more persons, other than individuals, may hold a joint fund-raiser if the receipts and expenses of the fund raiser are shared proportionately. (5) A person who knowingly violates this section is guilty of a misdemeanor punishable by imprisonment for not more than 90 days or a fine of not more than $1,000.00, or both.

Sec. 47. (1) Except as otherwise provided in this subsection and subject to subsections (3), ~~and~~ (4), AND (5), AN INTERNET COMMUNICATION, a billboard, placard, poster, pamphlet, or other printed matter having reference to an election, a candidate, or a ballot question, must display an

identification that contains the name and address of the person paying for the matter. Except as otherwise provided in this subsection ~~and subsection (5)~~ and subject to subsections (3) and ~~(4)~~(5), if the printed matter relating to a candidate is an independent expenditure that is not authorized in writing by the candidate committee of that candidate, in addition to the identification required under this subsection, the printed matter shall contain the following disclaimer: "Not authorized by any candidate committee". An individual other than a candidate is not subject to this subsection if the individual is acting independently and not acting as an agent for a candidate or any committee. This subsection does not apply to communications between a separate segregated fund established under section 55 and individuals who can be solicited for contributions to that separate segregated fund under section 55. (2) ~~A radio or television~~AN AUDIO OR VIDEO paid advertisement having reference to an election, a candidate, or a ballot question must identify the sponsoring person as required by the Federal Communications Commission, bear an identification that contains the name of the person paying for the advertisement, and be in compliance with subsection (3) and ~~, except as otherwise provided by subsection (5),~~ with the following: (a) If the ~~radio or television~~AUDIO OR VIDEO paid advertisement relates to a candidate and is an independent expenditure, the advertisement must contain the following disclaimer: "Not authorized by any candidate". (b) If the ~~radio or television~~AUDIO OR VIDEO paid advertisement relates to a candidate and is not an independent expenditure but is paid for by a person other than the candidate to which it is related, the advertisement must contain the following disclaimer: "Authorized by.....". (name of candidate or name of candidate committee) (3) The size and placement of an identification or disclaimer required by this section must be determined by rules promulgated by the secretary of state. The rules may exempt printed matter and certain other items such as campaign buttons or balloons, the size of which makes it unreasonable to add an identification or disclaimer, from the identification or disclaimer required by this section. IN THE CASE OF ANY INTERNET COMMUNICATION DISSEMINATED THROUGH A MEDIUM IN WHICH THE PROVISION OF ALL THE INFORMATION SPECIFIED IS NOT TECHNOLOGICALLY POSSIBLE, THE COMMUNICATION SHALL, IN A CLEAR AND CONSPICUOUS MANNER: (A) STATE THE NAME OF THE PERSON WHO PAID FOR THE COMMUNICATION. (B) PROVIDE A MEANS FOR THE RECIPIENT OF THE COMMUNICATION TO IMMEDIATELY OBTAIN THE REMAINDER OF THE INFORMATION REQUIRED UNDER THIS SECTION WITH MINIMAL EFFORT AND WITHOUT RECEIVING OR VIEWING ANY ADDITIONAL MATERIAL OTHER THAN THE REQUIRED INFORMATION. (4) A PERSON THAT CLAIMS ITS INTERNET COMMUNICATION LACKS SUFFICIENT SPACE FOR THE INFORMATION REQUIRED UNDER THIS SECTION MUST BE ABLE TO ESTABLISH, AT THE SECRETARY OF STATE'S REQUEST, THAT THIS EXEMPTION HAS BEEN MET. ~~(4)~~(5) Except ~~for a communication described in subsection (5) and except~~ for a candidate committee's printed matter or ~~radio or television~~AUDIO OR VIDEO paid advertisements, each identification required by this section must also indicate that the printed matter or ~~radio or television~~AUDIO OR VIDEO paid advertisement is paid for "with regulated funds". Printed matter or ~~a radio or television~~AN AUDIO OR VIDEO paid advertisement that is not subject to this act must not bear the statement required by this subsection. ~~(5)~~(6) THE REQUIREMENTS UNDER THIS SECTION APPLY TO ELECTIONEERING COMMUNICATIONS. ~~A communication otherwise entirely exempted from this act under section 6(2)(j) is subject to both of the following: (a) Must contain the identification required by subsection (1), (2), or (7) if that communication references a clearly identified candidate or ballot question within 60 days before a general election or 30 days before a primary election in which the candidate or ballot question appears on a ballot and is targeted to the relevant electorate where the candidate or ballot question appears on the ballot by means of radio, television, mass mailing, or prerecorded telephone message. (b) Is not required to contain the disclaimer required by subsection (1) or (2).~~ ~~(6)~~(7) A person who knowingly violates this section is guilty of a misdemeanor punishable by a fine of not more than $1,000.00, or imprisonment for not more than 93 days, or both. ~~(7)~~(8) A prerecorded telephone message that in express terms advocates the election or defeat of a clearly ~~identified~~ IDENTIFIABLE candidate, or the qualification, passage, or defeat of a CLEARLY IDENTIFIABLE ballot question, must bear an identification that contains the name and telephone number, address, or other contact information of the person paying for the prerecorded telephone message, and must be in compliance with subsection ~~(4)~~(5). Except as otherwise provided in this subsection, a prerecorded telephone message subject to this subsection is not required to contain a disclaimer. If the prerecorded telephone message is generated in whole or substantially by artificial intelligence, the prerecorded telephone message must contain the following disclaimer: "This message was generated in whole or substantially by artificial intelligence.".

Sec. 51. (1) A person, other than a committee, that makes ~~an~~ independent ~~expenditure~~ EXPENDITURES, advocating the election or defeat of a candidate or the qualification, passage, or defeat of a ballot question, in an AGGREGATE amount of $500.01~~00.01~~ or more in a calendar year shall file a report of the independent ~~expenditure~~EXPENDITURES, within 10 days after making ~~that~~ independent ~~expenditure~~EXPENDITURES AGGREGATING IN EXCESS OF $500.01, with the clerk of the county of residence of that person. If the independent expenditure advocates the election or defeat of a candidate for state elective office or for judicial office, or for the qualification, passage, or defeat of a statewide ballot question, or if the person making the independent expenditure is not a resident of this state, the person shall file the report with the secretary of state in lieu of filing with a clerk of a county. THE PERSON SHALL FILE A SUBSEQUENT REPORT WITHIN 10 DAYS OF MAKING ADDITIONAL INDEPENDENT EXPENDITURES AGGREGATING $500.01 OR MORE IN THE CALENDAR YEAR. The report required under this section must be made on an independent expenditure report form provided by the secretary of state, include the date of the expenditure, a brief description of the nature of the expenditure, the amount, the name and address of the person to whom it was paid, the name and address of the person filing the report, together with the name, address, occupation, employer, and principal place of business of each person that contributed $100.01 or more ~~to the~~ FOR MAKING INDEPENDENT ~~expenditure~~EXPENDITURES, and identify the candidate or ballot question for or against which the independent ~~expenditure~~EXPENDITURES ~~was~~WERE made. The filing official receiving the report shall forward copies, as required, to the appropriate filing officers as described in section 36.(2) If a person MAKING INDEPENDENT EXPENDITURES OR ELECTIONEERING COMMUNICATIONS fails to file a report as required under this section, that person shall pay a late filing fee. If the person has made independent expenditures totaling less than $10,000.00, the late filing fee is $25.00 for each business day the report remains unfiled, but not to exceed $1,000.00. If the person has made independent expenditures totaling $10,000.00 or more, the late filing fee is $50.00 for each business day the report remains unfiled, but not to exceed $5,000.00. A person that violates this subsection by failing to file a report required under this section for more than 30 days after the report is required to be filed is guilty of a misdemeanor punishable by imprisonment for not more than 90 days or a fine of not more than $1,000.00, or both. (3) ANY PERSON, OTHER THAN A COMMITTEE, WHO MAKES ELECTIONEERING COMMUNICATIONS AGGREGATING $5,000 OR MORE IN A CALENDAR YEAR SHALL FILE A REPORT IN THE SAME MANNER AS DESCRIBED UNDER SUBSECTION (1) WITHIN 10 DAYS OF MAKING ELECTIONEERING COMMUNICATIONS IN EXCESS OF $5,000. THE PERSON SHALL FILE A SUBSEQUENT REPORT WITHIN 10 DAYS OF MAKING ADDITIONAL ELECTIONEERING COMMUNICATIONS AGGREGATING IN EXCESS OF $5,000 IN THE CALENDAR YEAR. THE REPORT REQUIRED UNDER THIS SUBSECTION SHALL BE MADE ON AN ELECTIONEERING COMMUNICATION REPORT FORM PROVIDED BY THE SECRETARY OF STATE, INCLUDE THE DATES OF THE DISBURSEMENTS FOR THE COMMUNICATIONS, ALL CANDIDATES CLEARLY IDENTIFIED IN THE COMMUNICATIONS, THE AMOUNT OF THE DISBURSEMENTS, THE NAME AND ADDRESS TO WHOM ANY DISBURSEMENTS WERE MADE, THE NAME AND ADDRESS OF THE PERSON FILING THE REPORT, THE DATE ON WHICH THE PERSON'S ELECTIONEERING COMMUNICATIONS EXCEEDED $5,000 IN THE AGGREGATE TO REQUIRE THE REPORT, TOGETHER WITH THE NAME, ADDRESS, OCCUPATION, EMPLOYER, AND PRINCIPAL PLACE OF BUSINESS OF EACH PERSON THAT CONTRIBUTED $100.01 OR MORE FOR MAKING ELECTIONEERING COMMUNICATIONS AND ANY OTHER INFORMATION THE SECRETARY OF STATE DETERMINES IS NECESSARY. THE FILING OFFICIAL RECEIVING THE REPORT SHALL FORWARD COPIES, AS REQUIRED TO THE APPROPRIATE FILING OFFICERS AS DESCRIBED IN SECTION 36. A PERSON WHOSE SOLE ACTIVITY UNDER THIS ACT IS SPENDING $5,000 OR MORE ON ELECTIONEERING COMMUNICATIONS WITHIN A CALENDAR YEAR SHALL NOT BE REQUIRED TO REGISTER AS A POLITICAL COMMITTEE UNDER THIS ACT.